

ASSET PURCHASE AGREEMENT (APA)

Facilitated via VibeJam Marketplace

This Asset Purchase Agreement (the "Agreement") is entered into on [DATE] (the "Effective Date"), by and between:

SELLER: [Seller Full Name / Company Name], located at [Seller Address / Country]

BUYER: [Buyer Full Name / Company Name], located at [Buyer Address / Country]

1. Purchase and Sale of Assets

Subject to the terms and conditions of this Agreement, the Seller agrees to sell, transfer, and assign to the Buyer, and the Buyer agrees to purchase, 100% of the Seller's rights, title, and interest in the digital business known as [PROJECT/APP NAME] (the "Business").

The "Assets" being transferred include, but are not limited to:

Domains: All domain names associated with the Business.

Source Code & IP: All proprietary software, source code (e.g., GitHub repositories), databases, algorithms, logos, designs, and branding.

Customer & Financial Data: All active subscriptions, customer lists, and the associated payment processor accounts (e.g., Stripe, LemonSqueezy, Dodo Payments).

Third-Party Accounts: All social media handles, email lists, web hosting (e.g., Vercel, AWS), and associated third-party SaaS accounts used to run the Business.

(A full checklist is provided in Exhibit A).

Excluded Assets: The Seller is not assuming any of the Seller's prior debts, unpaid taxes, or liabilities created before the Effective Date.

2. Purchase Price and Escrow Mechanism

The total purchase price for the Assets is \$[TOTAL PURCHASE PRICE] USD (the "Purchase Price").

Payment Flow:

Escrow Funding: Within [e.g., 3] business days of signing this Agreement, the Buyer will deposit 100% of the Purchase Price into a secure transaction via Escrow.com.

Asset Transfer: Upon Escrow confirming the funds are secured, the Seller will immediately transfer all Assets (Domain, GitHub, Stripe, etc.) to the Buyer.

Inspection Period: The Buyer will have [e.g., 3 to 5] days (the "Inspection Period") to verify they have full administrative control of the Assets and that the code functions as advertised.

Release of Funds: Upon Buyer's approval in Escrow.com, the funds will be released to the Seller's bank account.

3. Representations and Warranties of the Seller

Ownership: The Seller is the sole owner of the Assets and has the absolute right to sell them. No other developers or third parties hold uncredited equity or ownership.

No Infringement: The source code and branding do not infringe on the copyrights, trademarks, or intellectual property of any third party.

Accurate Metrics: All financial metrics (MRR, revenue) and traffic data presented on VibeJam prior to this Agreement are true and accurate.

No Lawsuits: There are no pending lawsuits, claims, or legal disputes against the Business.

4. Handover and Transition Support

The Seller agrees to provide up to [e.g., 10] hours of support via email, Slack, or Zoom over a period of [e.g., 30] days following the close of Escrow.

This support is strictly limited to explaining the codebase, assisting with server migration, and introducing the Buyer to the software architecture. It does not include writing new features.

5. Non-Compete and Non-Solicitation

For a period of [e.g., 2] years following the Effective Date:

Non-Compete: The Seller will not build, launch, or advise any new software, app, or business that directly competes with the core functionality of the Business sold today.

Non-Solicitation: The Seller will not intentionally contact the Business's existing customers to persuade them to cancel their subscriptions or move to a competing service.

6. Governing Law

This Agreement shall be governed by and construed in accordance with the laws of [e.g., The State of Delaware, USA / Your Jurisdiction], without regard to its conflict of law principles.

Signatures

THE SELLER

Printed Name: _____

Signature: _____

Date: _____

THE BUYER

Printed Name: _____

Signature: _____

Date: _____

EXHIBIT A: The Asset Schedule

(To be filled out by Buyer & Seller before signing)

Primary Domain: _____

Code Repositories: _____

Payment Processor (e.g., Stripe Email): _____

Hosting Provider (e.g., Vercel/AWS Email): _____

Social Media Handles (X, LinkedIn): _____

Other Key Software Accounts: _____

Disclaimer: This template is provided by VibeJam for educational and convenience purposes. It does not constitute formal legal advice. Both parties are strongly encouraged to consult their own legal counsel prior to executing this agreement.